

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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Alpha Diallo, Demba Diakite, Abubacarr Marong and :
Thierno Bah, :
 : Index Number:
 : Date Purchased:
 : Date Filed:

Plaintiffs : SUMMONS

-against- :

City of New York, New York City Police Department, :
Police Officer Michael Fortunado, Tax Reg # 954820 of :
the 106 Precinct, Police Officer Michael Agunzo, Tax :
Reg # 962913 of the 106 Precinct, Sergeant Sean Doheny, :
Tax Reg # 948899 of the 106 Precinct and New York City :
Police Officers John Doe, :
 :
 : Plaintiff Diallo's
 : residence is:
 : 58 Clinton Place
 : Bronx, NY 10453

Defendants

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose and Plaintiffs reside in Queens County.

Dated: April 23, 2022
BRONX, NY

Yours, etc.,

Jason Steinberger

LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiffs
888 Grand Concourse, Suite 1H
Bronx, NY 10451
(646) 256-1007

To: City of New York

New York City Police Department

Police Officer Michael Fortunado, Tax Reg # 954820 of the 106 Precinct

Police Officer Michael Agunzo, Tax Reg # 962913 of the 106 Precinct

Sergeant Sean Doheny, Tax Reg # 948899 of the 106 Precinct

New York City Police Officers John Doe

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X	
Alpha Diallo, Demba Diakite, Abubacarr Marong and	:
Thierno Bah,	:
	:
Plaintiffs	: VERIFIED COMPLAINT
	:
-against-	:
	:
City of New York, New York City Police Department,	:
Police Officer Michael Fortunado, Tax Reg # 954820 of	:
the 106 Precinct, Police Officer Michael Agunzo, Tax	:
Reg # 962913 of the 106 Precinct, Sergeant Sean Doheny,	:
Tax Reg # 948899 of the 106 Precinct and New York City	:
Police Officers John Doe,	:
	:
Defendants	:
-----X	

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Alpha Diallo, (hereinafter referred to as “DIALLO”) is a resident of Bronx County, State of New York.
2. That at all times hereinafter mentioned, Plaintiff Demba Diakite, (hereinafter referred to as “DIAKITE”) is a resident of Bronx County, State of New York.
3. That at all times hereinafter mentioned, Plaintiff Abubacarr Marong (hereinafter referred to as “MARONG”) is a resident of Bronx County, State of New York.
4. That at all times hereinafter mentioned, Plaintiff Thierno Bah, (hereinafter referred to as “BAH”) is a resident of Bronx County, State of New York.

5. That at all times hereinafter mentioned, Police Officer Michael Fortunado, Tax Reg # 954820 of the 106 Precinct (hereinafter referred to as “FORTUNADO”) was employed by the New York City Police Department.
6. That at all times hereinafter mentioned, Police Officer Michael Agunzo, Tax Reg # 962913 of the 106 Precinct (hereinafter referred to as “AGUNZO”) was employed by the New York City Police Department.
7. That at all times hereinafter mentioned, Police Officer Sergeant Sean Doheny, Tax Reg # 948899 of the 106 Precinct (hereinafter referred to as “DOHENY”) was employed by the New York City Police Department.
8. That at all times hereinafter mentioned, the New York City Police Officers John Doe, (hereinafter referred to as “DOES”) were employed by the New York City Police Department.
9. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.
10. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.
11. That within ninety days from the date of arrest, notice required by Municipal Law 50-E was given to City of New York, by personal service as to all Plaintiffs. Said notice set forth the facts underlying Plaintiffs’ claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.
12. On or about December 10, 2021, a hearing required by Municipal Law 50-H was conducted as to DIALLO and DIAKITE. At said hearing, Plaintiffs testified and set forth the

facts underlying Plaintiffs' claim against the City of New York and its agents and employees.

To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

13. On or about November 11, 2021, a hearing required by Municipal Law 50-H was conducted as to MARONG. At said hearing, Plaintiff testified and set forth the facts underlying Plaintiffs' claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

14. On or about October 5, 2021, a hearing required by Municipal Law 50-H was conducted as to BAH. At said hearing, Plaintiff testified and set forth the facts underlying Plaintiffs' claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

15. That on or about March 20, 2021 at approximately 1:00 AM in the vicinity of 110 Street and 111 Avenue, Queens, NY, Plaintiffs were on their way home from a local Queens lounge when they were stopped for no lawful reason by FORTUNADO, AGUNZO, DOHENY and DOES.

16. That FORTUNADO, AGUNZO, DOHENY and DOES unlawfully ordered Plaintiffs and the other two women in the car to exit the car.

17. That FORTUNADO, AGUNZO, DOHENY and DOES then observed a loaded firearm, inside of a purse, being held by one of the women.

18. Despite the loaded firearm being on the person of another, FORTUNADO, AGUNZO, DOHENY and DOES arrested Plaintiffs.

19. That at no time did any of the Plaintiffs possess a loaded a firearm.
20. That at no time did DIALLO possess any marijuana.
21. That at no time BAH possess any marijuana.
22. That at no time did any of the Plaintiffs engage in any criminal or unlawful conduct.
23. That after Plaintiffs were arrested, they were transported to the 106 police precinct.
24. That while Plaintiffs were inside of the 106 precinct, Plaintiffs were each strip searched
25. That while Plaintiffs were inside of the 106 precinct, Plaintiffs were held in a holding cell occupied with other males for several hours.
26. That after several hours at the 106 police precinct, Plaintiffs were transported to Queens County Central Booking located at 125-01 Queens Boulevard, Queens, NY.
27. That on or about March 21, 2021 DIALLO was arraigned on docket CR-006044-21QN and charged with Criminal Possession of Weapon, Criminal Possession of Marijuana and related offenses.
28. That at the time of the arraignment, DIALLO was released on his own recognizance and ordered to return to court.
29. That on or about March 21, 2021 DIKATIE was arraigned on docket CR-006039-21QN and charged with Criminal Possession of Weapon and related offenses.
30. That at the time of the arraignment, DIAKITE was released on his own recognizance and ordered to return to court.
31. That on or about March 21, 2021 MARONG was arraigned on docket CR-006040-21QN and charged with Criminal Possession of Weapon and related offenses.
32. That at the time of the arraignment, MARONG was released on his own recognizance and ordered to return to court.

33. That on or about March 21, 2021, BAH was arraigned on docket CR-006036-21QN and charged with Criminal Possession of Weapon and related offenses.

34. That at the time of the arraignment, bail was set and BAH was remanded to the custody of the New York City Corrections Department.

35. That on and between March 21, 2021 and September 17, 2021, DIALLO made several court appearances until the criminal case was dismissed upon application of the Queens County District Attorney.

36. That on and between March 21, 2021 and September 24, 2021, DIAKITE made several court appearances until the criminal case was dismissed upon application of the Queens County District Attorney.

37. That on and between March 21, 2021 and September 30, 2021, MARONG made several court appearances until the criminal case was dismissed upon application of the Queens County District Attorney.

38. That on and between March 21, 2021 and September 17, 2021, BAH made several court appearances until the criminal case was dismissed upon application of the Queens County District Attorney.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

39. Plaintiff Diallo repeats, reiterates and realleges the allegations contained in paragraphs 1 through 38, as if more fully stated herein at length.

40. That Defendants acted with actual malice toward Plaintiff DIALLO and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

41. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

42. That as a result of the actions by Defendants, Plaintiff DIALLO was traumatized and fears his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.

43. That as a result of the Defendants' actions, Plaintiff DIALLO has been unable to sleep.

44. That as a result of the Defendants' actions Plaintiff DIALLO sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

45. Plaintiff DIALLO repeats, reiterates and realleges the allegations contained in paragraphs 1 through 44, as if more fully stated herein at length.

46. The intentional verbal abuse, false arrest and false imprisonment by Defendants violated the rights of the Plaintiff DIALLO as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

47. Defendants having no lawful authority to arrest Plaintiff DIALLO, did, nevertheless, unlawfully arrest Plaintiff DIALLO with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff DIALLO is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANTS

48. Plaintiff DIALLO repeats, reiterates and realleges the allegations contained in paragraphs 1 through 47, as if more fully stated herein at length.

49. Defendants conspired to violate Plaintiff DIALLO's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff DIALLO is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS

50. Plaintiff DIALLO repeats, reiterates and realleges the allegations contained in paragraphs 1 through 49, as if more fully stated herein at length.

51. Plaintiff DIALLO was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

52. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff DIALLO by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

53. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff DIALLO by claiming that Plaintiff possessed a firearm despite knowing that only firearm recovered was done so from the person of another.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

54. Plaintiffs DIALLO repeats, reiterates and realleges the allegations contained in paragraphs 1 through 53, as if more fully stated herein at length.

55. At all times pertinent hereto, FORTUNADO, AGUNZO, DOHENY and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

56. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that FORTUNADO, AGUNZO, DOHENY and DOES committed within the scope of their employment.

**AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

57. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 56, as if more fully stated herein at length.

58. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff DIALLO. Plaintiff DIALLO is thus entitled to compensatory exemplary damages.

**AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

59. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 58, as if more fully stated herein at length.

60. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff DIALLO.

61. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff DIALLO.

62. The City of New York and New York City Police Department knew that FORTUNADO had tow (2) Civilian Complaint Review Board complaints against him and despite such, they continued to employ FORTUNADO

63. The City of New York and New York City Police Department knew that FORTUNADO had two (2) Civilian Complaint Review Board complaints against him and despite such, they continued to employ FORTUNADO

64. The City of New York and New York City Police Department knew that AGUNZO had five (5) Civilian Complaint Review Board complaints against him and despite such, they continued to employ AGUNZO.

65. The City of New York and New York City Police Department knew that DOHENY had six (6) Civilian Complaint Review Board complaints against him and despite such, they continued to employ DOHENY.

66. The City of New York and New York City Police Department knew that DOHENY was the subject of a lawsuit, Eric Davila v. City of New York et al, index number 15CV09802, Southern District of the United States District Court. Despite such, the City of New York and New York City Police Department continued to employ DOHENY.

AS AND FOR AN EIGHTH CAUSE OF ACTION AGAINST DEFENDANTS

67. Plaintiff DIAKITE repeats, reiterates and realleges the allegations contained in paragraphs 1 through 66 as if more fully stated herein at length.

68. That Defendants acted with actual malice toward Plaintiff DIAKITE and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff DIAKITE.

69. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

70. That as a result of the actions by Defendants, Plaintiff DIAKITE was traumatized and fears for his physical safety when he sees and encounter members of the New York City Police Department from that day and onward.

71. That as a result of the Defendants' actions, Plaintiff DIAKITE has been unable to sleep.

72. That as a result of the Defendants' actions Plaintiff DIAKITE sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A NINTH CAUSE OF ACTION AGAINST DEFENDANTS

73. Plaintiff DIAKITE repeats, reiterates and realleges the allegations contained in paragraphs 1 through 72, as if more fully stated herein at length.

74. The intentional verbal abuse, false arrest and false imprisonment by Defendants violated the rights of Plaintiff DIAKITE as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

75. Defendants having no lawful authority to arrest Plaintiff DIAKITE, did, nevertheless, unlawfully arrest Plaintiff DIAKITE with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff DIAKITE is entitled to both compensatory and exemplary damages.

AS AND FOR A TENTH CAUSE OF ACTION AGAINST DEFENDANTS

76. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 75, as if more fully stated herein at length.

77. Defendants conspired to violate Plaintiff DIAKITE's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff DIAKITE is entitled to both compensatory and exemplary damages, as well as attorney's fees.

78.

AS AND FOR A ELEVENTH CAUSE OF ACTION AGAINST DEFENDANTS

79. Plaintiff DIAKITE repeats, reiterates and realleges the allegations contained in paragraphs 1 through 78, as if more fully stated herein at length.

80. Plaintiff DIAKITE was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified

and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

81. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff DIAKITE by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

That during the pendency of the case, Defendants maliciously prosecuted Plaintiff DIAKITE by claiming that Plaintiff possessed a firearm despite knowing that only firearm recovered was done so from the person of another.

**AS AND FOR A TWELFTH CAUSE OF ACTION AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

82. Plaintiffs DIALLO repeats, reiterates and realleges the allegations contained in paragraphs 1 through 81, as if more fully stated herein at length.

83. At all times pertinent hereto, FORTUNADO, AGUNZO, DOHENY and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

84. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that FORTUNADO, AGUNZO, DOHENY and DOES committed within the scope of their employment.

AS AND FOR A THIRTEENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT

85. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 84, as if more fully stated herein at length.

86. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff DIAKITE. Plaintiff DIAKITE is thus entitled to compensatory exemplary damages.

AS AND FOR A FOURTEENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT

87. Plaintiff DIAKITE repeats, reiterates and realleges the allegations contained in paragraphs 1 through 86, as if more fully stated herein at length.

88. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff DIAKITE.

89. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff DIAKITE.

90. The City of New York and New York City Police Department knew that FORTUNADO had two (2) Civilian Complaint Review Board complaints against him and despite such, they continued to employ FORTUNADO.

91. The City of New York and New York City Police Department knew that FORTUNADO had two (2) Civilian Complaint Review Board complaints against him and despite such, they continued to employ FORTUNADO.

92. The City of New York and New York City Police Department knew that AGUNZO had five (5) Civilian Complaint Review Board complaints against him and despite such, they continued to employ AGUNZO.

93. The City of New York and New York City Police Department knew that DOHENY had six (6) Civilian Complaint Review Board complaints against him and despite such, they continued to employ DOHENY.

94. The City of New York and New York City Police Department knew that DOHENY was the subject of a lawsuit, Eric Davila v. City of New York et al, index number 15CV09802, Southern District of the United States District Court. Despite such, the City of New York and New York City Police Department continued to employ DOHENY.

AS AND FOR AN FIFTEENTH CAUSE OF ACTION AS DEFENDANTS

95. Plaintiff MARONG repeats, reiterates and realleges the allegations contained in paragraphs 1 through 94 as if more fully stated herein at length.

96. That Defendants acted with actual malice toward Plaintiff MARONG and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff MARONG.

97. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

98. That as a result of the actions by Defendants, Plaintiff MARONG was traumatized and fears for his physical safety when she sees and encounter members of the New York City Police Department from that day and onward.

99. That as a result of the Defendants' actions, Plaintiff MARONG has been unable to sleep.

100. That as a result of the Defendants' actions Plaintiff MARONG sustained damage to his persons in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SIXTEENTH CAUSE OF ACTION AGAINST DEFENDANTS

101. Plaintiff MARONG repeats, reiterates and realleges the allegations contained in paragraphs 1 through 100, as if more fully stated herein at length.

102. The intentional verbal abuse, false arrest and false imprisonment by Defendants violated the rights of Plaintiff MARONG as guaranteed by the Fourth, Fifth and Eighth Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

103. Defendants having no lawful authority to arrest Plaintiff MARONG, did, nevertheless, unlawfully arrest Plaintiff MARONG with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff MARONG is entitled to both compensatory and exemplary damages.

AS AND FOR A SEVENTEENTH CAUSE OF ACTION AGAINST DEFENDANTS

104. Plaintiff MARONG repeats, reiterates and realleges the allegations contained in paragraphs 1 through 103, as if more fully stated herein at length.

105. Defendants conspired to violate Plaintiff MARONG's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff MARONG is entitled to both compensatory and exemplary damages, as well as attorney's fees.

106.

AS AND FOR A EIGHTEENTH CAUSE OF ACTION AGAINST DEFENDANTS

107. Plaintiff MARONG repeats, reiterates and realleges the allegations contained in paragraphs 1 through 106, as if more fully stated herein at length.

108. Plaintiff DIALLO was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

109. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff MARONG by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

110. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff MARONG by claiming that Plaintiff possessed a firearm despite knowing that only firearm recovered was done so from the person of another.

**AS AND FOR A NINETEENTH CAUSE OF ACTION AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

111. Plaintiff MARONG repeats, reiterates and realleges the allegations contained in paragraphs 1 through 110, as if more fully stated herein at length.

112. At all times pertinent hereto, FORTUNADO, AGUNZO, DOHENY and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

113. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that FORTUNADO, AGUNZO, DOHENY and DOES committed within the scope of their employment.

**AS AND FOR A TWENTIETH CAUSE OF ACTION AS AGAINST CITY OF NEW
YORK AND NEW YORK CITY POLICE DEPARTMENT**

114. Plaintiff MARONG repeats, reiterates and realleges the allegations contained in paragraphs 1 through 113, as if more fully stated herein at length.

115. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff MARONG. Plaintiff MARONG is thus entitled to compensatory exemplary damages.

**AS AND FOR A TWENTY-FIRST CAUSE OF ACTION AS AGAINST CITY OF NEW
YORK AND NEW YORK CITY POLICE DEPARTMENT**

116. Plaintiff MARONG repeats, reiterates and realleges the allegations contained in paragraphs 1 through 115, as if more fully stated herein at length.

117. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff MARONG.

118. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff MARONG.

119. The City of New York and New York City Police Department knew that FORTUNADO had tow (2) Civilian Complaint Review Board complaints against him and despite such, they continued to employ FORTUNADO

120. The City of New York and New York City Police Department knew that FORTUNADO had two (2) Civilian Complaint Review Board complaints against him and despite such, they continued to employ FORTUNADO

121. The City of New York and New York City Police Department knew that AGUNZO had five (5) Civilian Complaint Review Board complaints against him and despite such, they continued to employ AGUNZO.

122. The City of New York and New York City Police Department knew that DOHENY had six (6) Civilian Complaint Review Board complaints against him and despite such, they continued to employ DOHENY.

123. The City of New York and New York City Police Department knew that DOHENY was the subject of a lawsuit, Eric Davila v. City of New York et al, index number 15CV09802, Southern District of the United States District Court. Despite such, the City of New York and New York City Police Department continued to employ DOHENY.

AS AND FOR AN TWENTY-SECOND CAUSE OF ACTION DEFENDANTS

124. Plaintiff BAH repeats, reiterates and realleges the allegations contained in paragraphs 1 through 123 as if more fully stated herein at length.

125. That Defendants acted with actual malice toward Plaintiff BAH and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff BAH.

126. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

127. That as a result of the actions by Defendants, Plaintiff BAH was traumatized and fears for his physical safety when she sees and encounter members of the New York City Police Department from that day and onward.

128. That as a result of the Defendants' actions, Plaintiff BAH has been unable to sleep.

129. That as a result of the Defendants' actions, Plaintiff BAH was forced to miss multiple days of school.

130. That as a result of the Defendants' actions Plaintiff BAH sustained damage to their persons in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A TWENTY-THIRD CAUSE OF ACTION AGAINST DEFENDANTS

131. Plaintiff BAH repeats, reiterates and realleges the allegations contained in paragraphs 1 through 130, as if more fully stated herein at length.

132. The intentional verbal abuse, false arrest and false imprisonment by Defendants violated the rights of Plaintiff BAH as guaranteed by the Fourth, Fifth and Eighth Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

133. Defendants having no lawful authority to arrest Plaintiff BAH, did, nevertheless, unlawfully arrest Plaintiff BAH with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff BAH is entitled to both compensatory and exemplary damages.

AS AND FOR A TWENTY-FOURTH CAUSE OF ACTION AGAINST DEFENDANTS

134. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 133, as if more fully stated herein at length.

135. Defendants conspired to violate Plaintiff BAH's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff BAH is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A TWENTY-FIFTH CAUSE OF ACTION AGAINST DEFENDANTS

136. Plaintiff BAH repeats, reiterates and realleges the allegations contained in paragraphs 1 through 135, as if more fully stated herein at length.

137. Plaintiff BAH was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

138. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff BAH by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

139. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff BAH by claiming that Plaintiff possessed a firearm despite knowing that only firearm recovered was done so from the person of another.

**AS AND FOR A TWENTY-SIXTH CAUSE OF ACTION AGAINST DEFENDANTS
CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

140. Plaintiff BAH repeats, reiterates and realleges the allegations contained in paragraphs 1 through 139, as if more fully stated herein at length.

141. At all times pertinent hereto, FORTUNADO, AGUNZO, DOHENY and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

142. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that FORTUNADO, AGUNZO, DOHENY and DOES committed within the scope of their employment.

**AS AND FOR A TWENTY SEVENTH CAUSE OF ACTION AS AGAINST CITY OF
NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

143. Plaintiff BAH repeats, reiterates and realleges the allegations contained in paragraphs 1 through 142, as if more fully stated herein at length.

144. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff BAH. Plaintiff BAH is thus entitled to compensatory exemplary damages.

**AS AND FOR A TWENTY-EIGHTH CAUSE OF ACTION AS AGAINST CITY OF
NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

145. Plaintiff BAH repeats, reiterates and realleges the allegations contained in paragraphs 1 through 144, as if more fully stated herein at length.

146. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff BAH.

147. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff BAH.

148. The City of New York and New York City Police Department knew that FORTUNADO had tow (2) Civilian Complaint Review Board complaints against him and despite such, they continued to employ FORTUNADO

149. The City of New York and New York City Police Department knew that FORTUNADO had two (2) Civilian Complaint Review Board complaints against him and despite such, they continued to employ FORTUNADO

150. The City of New York and New York City Police Department knew that AGUNZO had five (5) Civilian Complaint Review Board complaints against him and despite such, they continued to employ AGUNZO.

151. The City of New York and New York City Police Department knew that DOHENY had six (6) Civilian Complaint Review Board complaints against him and despite such, they continued to employ DOHENY.

152. The City of New York and New York City Police Department knew that DOHENY was the subject of a lawsuit, Eric Davila v. City of New York et al, index number 15CV09802, Southern District of the United States District Court. Despite such, the City of New York and New York City Police Department continued to employ DOHENY.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

On the eighth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the ninth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the tenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the eleventh cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the twelfth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the thirteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the fourteenth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

On the fifteenth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the sixteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction

of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the seventeenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the eighteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the nineteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the twentieth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the twenty-first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

On the twenty-second cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the twenty-third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the twenty-fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the twenty-fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the twenty-sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the twenty-seventh cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the twenty-eighth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

Jason Steinberger

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STATE OF NEW YORK: COUNTY OF NEW YORK

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: April 23, 2022

Jason Steinberger
Jason A. Steinberger